Notification Waiver Determination

AerFin - aircraft from Qantas

Acquisition	AerFin Limited (**AerFin**) applied for a notification waiver in respect of its proposed acquisition of Boeing 737-838 aircraft and engines from Qantas Airways Limited (**Qantas**) as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	23 October 2026

Parties to the Acquisition	The acquirer, AerFin, is a UK-headquartered global aviation services company specialising in aftermarket material supply (referred to as used serviceable material (**USM**)), aircraft and engine trading, and nose-to-tail component support solutions. AerFin buys, sells, leases and repairs aircraft, engines and parts. AerFin generally targets mid-life and end-of-life commercial aircraft and engines (typically 8-15 years old) and monetises them principally through teardown, repair and sale of USM, and from time-to-time through whole-asset sales, short-term leasing of engines or other high value parts and related support programmes. AerFin's customers are airlines, aircraft lessors and aircraft maintenance, repair and overhaul organisations. While AerFin does make some USM sales to customers in Australia, AerFin does not have a physical presence in Australia. Qantas is an Australian-based domestic and international airline. Qantas also operates airline-related businesses including freight operations and loyalty programs, and various airline subsidiaries, namely Jetstar Airways Pty Limited (which operates domestic and international flights), regional airline QantasLink and Network Aviation.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. the Acquisition represents a small proportion of the total global supply of retired commercial aircraft b. there are alternative suppliers and acquirers of aircraft and component parts globally.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act